Energy Wave

energywave.ai • Open Items Register — the founder's decisions as applied, every [TBD] field, every pending item
15 October 2026 · DD-2026-10-15-r5.6-draft

CONFIDENTIAL — DRAFT — FOR DISCUSSION · 36 OPEN ITEMS · 12 FOUNDER DECISIONS APPLIED · NO QUESTION IS ASKED OF THE FOUNDER

What was decided, what is [TBD], what is pending. Who holds each item, and where it lands.

On 15 October 2026 the founder gave his decisions (ledger S-44, S-46, S-47), asked that unresolved fields be marked with the exact bracketed **[TBD]** in orange ink, and asked that no further questionnaire follow. This register therefore asks the founder nothing. It records, in order: the one time-critical action; the founder's decisions as applied (closed); every **[TBD]** marker by document, exactly as it appears; every **[Pending: …]** item owed by counsel or a named person; the holds; and the reviewer and lead operations. [TBD] identifies an unresolved field and establishes no term, result, agreement or submission clearance. A marker that is not listed here is a finding. The same list is kept as **NEEDS_INPUT.md** at the root of the package (file name kept for continuity).

> **One item is time-critical:** T-1, the xTech Search 10 attachment, before Monday 19 October 2026, 21:00 UTC. Everything else is gated by circulation, not by a clock.

0 · TIME-CRITICAL — BEFORE MONDAY 19 OCTOBER 2026, 21:00 UTC (2:00 PM PACIFIC)

The xTech Search 10 portal is editable until the close. This is an action on the checklist, not a question.

#	Item	Where it lands	Who
T-1	Verify the current xTech attachment (artifact 262231) before the close: download it, hash it (expected 90823d62…fea1, 123,643 bytes), confirm the cover reads ≈ USD 10,000 under Capital Raised Total — the 9 Oct record as submitted, which the 15 Oct no-funding statement does not change — with no private-review banner and no TBD fields; re-upload the approved replacement if not. Record the hash and time seen; who applied the 9–14 Oct changes, whether Beacon/Muse made the submission and whether the evaluators' frozen version is known stay [TBD] unless noted. Nothing on the portal is changed by this package.	90_Internal_Ops_NOT_FOR_CIRCULATION/2026-10-15_xtech-attachment-verification_checklist.md; D7; xTech Submission Record §3 and §5	Ian (an action, not a question)

A · THE FOUNDER'S DECISIONS OF 15 OCTOBER 2026 — APPLIED AND CLOSED (LEDGER S-44, S-46, S-47)

Founder statements and authoring directions relayed by GPT; not independent bank, registry, contractual, institutional or recipient verification. Each row names where it was applied and what stays [TBD].

#	Item	Where it lands	Who
F01	Audiences: Capital Readiness for close friends, family and angel investment groups, may combine with the Seed Round; Conviction the Seed example; Sequoia the Series A example; IQT, DOE, DoW, DARPA the government and national-security targets — targets, not relationships. The three round folders stand; the Capital Readiness deck is not relabelled. Still TBD: the combined-round structure, the exact opportunity, recipient and format.	D1; Capital Readiness Terms; Series A outline §1; Reading Guide; DELIVERY_MAP.md	closed (founder)

#	Item	Where it lands	Who
F02	No SAFE executed (“correct no safe has been done”); no funding raised. The prior-SAFE question is closed. Still TBD: the accounting basis reconciling the 9 Oct ≈ $10,000 record; the workbook's E10 / P4 entries stay as dated conflicts.	D3; SAFE Term Summary; Capital Readiness Terms; Seed deck slide 5 and one-pager; Legal page; Applicant page; xTech record §5; Raise Model Note status box	closed (founder)
F03	Amounts, instrument and budgets: no numeric target supplied (“sky is the limit” sets no number); a future SAFE possible, not selected. TBD: amount, tranche sizes, instrument, cap / valuation / discount / MFN, budget owner, allocation; the Oct-13 $60,000 and the model's outputs stay dated proposals and scenarios.	every investor page (B-1, B-2, B-3, B-13)	closed (founder); fields TBD
F04	Entity work: K&L Gates is handling the entity (founder) — a responsibility, not formation evidence. Certificate, file number, officer and share details are pending from counsel (C-2).	D3; Legal page §1 and §5; Capital Readiness Terms; SAFE page; deck slides 5 and 14; one-pager; DoW v2.1 §5; Safe Release §8; Applicant page; counsel draft §A	closed (founder); counsel pending
F05	First research path: Sweet solid-state leads. Replication (B) and metrology (C) stay distinct; xTech's proposal is not rewritten. TBD: specimen, conditioning, website-device identity, bench order, laboratory, named measurement lead (B-4, B-16).	D2; Research Program; deck slide 6; one-pager; structure page; Thread A plan; Technical Docs hub; DoW v2.1 §3.2	closed (founder); fields TBD
F06	Planned office: the UCI area near the National Fuel Cell Research Center, where the founder says ACT Hydrogen works — a plan. TBD: address, lease, space, price, laboratory access, any agreement (B-12); no UCI, NFCRC or ACT Hydrogen relationship.	D12; deck slide 9; one-pager; structure page; Technical Docs hub; Applicant page; Raise Model Note status box	closed (founder); fields TBD
F07	Current core team: Ian McLean and Chip Story; Chip “cofounder Physicist” by the founder's designation (S-47), not credential proof. TBD: compensation, equity, vesting and agreements — counsel's lane.	D4; Team page roster; deck slide 11; one-pager; DoW v2.1 §6; Safe Release §8	closed (founder)
F08	Future team: Mike Wentz willing to join after Capital Readiness (title TBD); Arath Acosta proposed Design Engineer from Seed onward. TBD: other roles, terms, start, credentials; no age, praise, invented qualification, employment or signed hire.	D4; Team page roster; deck slide 11; one-pager; DoW v2.1 §6; Safe Release §8; Raise Model Note status box	closed (founder); fields TBD
F09	Roles confirmed (S-46): Alan Crunkleton — advisor; Jack Sarfatti — team member, not advisor (“Jack has consented as team member not advisor”); consent confirmed by the founder for both (founder-reported; no signed instrument claimed); supersedes the handoff's “both advisors” wording; historical records unchanged; not asked again. TBD: Crunkleton's three bio items.	D4; Team page; deck slide 11; one-pager; DoW v2.1 §6; Safe Release §8	closed (founder)
F10	Contact: ian@energywave.ai fully configured in Outlook (founder report); the forwarding / Send-As question is retired; the prepared signature reported saved and verified in Outlook by GPT. No send or delivery test. TBD: the letterhead address (B-8).	D5; DoW v2.1 header; Safe Release letterhead; drafts' From lines; internal-ops README	closed (founder)
F11	HOLD: no outreach to Alan Crunkleton or Jack Sarfatti unless the founder later expressly authorizes it; their drafts preserved unsent; earlier Grok reviews are dated records of exact drafts, not send authority; no address lookup.	H-1, H-2; internal-ops README; Team page; Seed deck and one-pager	standing instruction

#	Item	Where it lands	Who
F12	Keep the format and other content as they are; no more questions; mark unresolved fields with the exact bracketed [TBD] in orange ink (“make the TBD in brackets [TBD] and in orange ink”, superseding the earlier literal TBT). [TBD] is not resolved, signed or verified; originals, dated quotes, historical figures, scientific thresholds and hashes are preserved.	every page; this register; README Rule 11; REVIEW_PROTOCOL item 7; D8, D10, D11 marked TBD	closed (founder)

B · [TBD] FIELDS, BY DOCUMENT — THE LITERAL MARKERS, WHERE EACH ONE SITS

[TBD] — the exact bracketed marker in orange ink, as the founder asked on 15 Oct 2026 — stands for a current amount, term, role or detail not yet determined. It identifies an unresolved field; it establishes no term, result, agreement or submission clearance; and no further question is asked of the founder about it. He fills these in his own time.

#	Item	Where it lands	Who
B-13	**[TBD] — amount · [TBD] — instrument · [TBD] — cap, discount, MFN · [TBD] — combined structure · [TBD] — allocation · [TBD] — reconciliation of the 9 Oct ≈ $10,000 record with the 15 Oct no-funding statement**	01_Investor/01_Capital_Readiness/EnergyWave_Capital_Readiness_Terms_and_Objectives_2026-10-15.pdf	the founder, in his own time, with counsel
B-1	**[TBD] — instrument · [TBD] — SAFE form · [TBD] — current amount · [TBD] — valuation cap · [TBD] — discount · [TBD] — MFN · [TBD] — pro rata side letter · [TBD] — investor(s) and accredited-investor basis · [TBD] — information-rights letter · [TBD] — officer title on formation — counsel’s CEO / Secretary / CFO confirmation pending · [TBD] — reconciliation of the 9 Oct record with the 15 Oct statement**	01_Investor/01_Capital_Readiness/EnergyWave_SAFE_Term_Summary_DRAFT_2026-10-15.pdf	the founder with counsel; counsel for 506(b)/(c)
B-2	**[TBD] — thread A specimen and conditioning · [TBD] — Tranche A amount · [TBD] — Tranche B amount · [TBD] — Tranche C amount · [TBD] — validated inputs; budget owner · [TBD] — role · [TBD] — instrument and pre-money · [TBD] — seed amount · [TBD] — Tranche A amount · [TBD] — seed amount · [TBD] — instrument; pre-money · [TBD] — seed amount, pre-money and instrument · [TBD] — validated inputs; budget owner · [TBD] — office site, lease and laboratory access**	01_Investor/02_Seed_Round/EnergyWave_Seed_Deck_DRAFT_2026-10-15.pdf; 01_Investor/02_Seed_Round/EnergyWave_Seed_OnePager_DRAFT_2026-10-15.pdf; 01_Investor/02_Seed_Round/EnergyWave_Seed_Round_Structure_DRAFT_2026-10-15.pdf	the founder with counsel; counsel for escrow and 506(b)/(c)
B-3	**[TBD] — the cap table file, or rebuild from the model · [TBD] — the Series A deck file, or rebuild · [TBD] — validated inputs; budget owner · [TBD] — which entity’s books**	01_Investor/03_Series_A/EnergyWave_Series_A_Readiness_Outline_DRAFT_2026-10-15.pdf	the founder; a finance owner when named
B-16	**[TBD] — specimen and conditioning**	03_Technical_Documents/EnergyWave_Research_Program_and_Gates_2026-10-15.pdf	Chip Story with the founder (inventor-defined)

#	Item	Where it lands	Who
B-4	**[TBD] — the actual core — material, grade, supplier, lot; or the off-the-shelf baseline · [TBD] — geometry, magnetization direction and state, winding axis · [TBD] — winding specification if the original design differs · [TBD] — the conditioning procedure, its intended state change and the energy delivered · [TBD] — the founder's notes, drawings and prior measurements for the pre-registration appendix · [TBD] — specimen — material, grade, geometry, magnetization, winding axis · [TBD] — the conditioning procedure and its intended physical state change · [TBD] — the founder's notes and any prior measurements on the module · [TBD] — whether the deck's Sweet module and the website's "mid-1980s solid-state design" are the same device · [TBD] — the measurement lead who signs the specimen record, and the laboratory · [TBD] — the order of thread A and thread B on the shared platform — the lead path is A (founder, 15 Oct 2026); the bench sequence is not stated**	03_Technical_Documents/EnergyWave_Thread_A_Characterization_Plan_DRAFT_2026-10-15.pdf	Chip Story with the founder (inventor-defined)
B-5	**[TBD] · [TBD] — $\bar{P}$ · [TBD] — $\bar{P}$ from §3 · [TBD] — Ppeak, ramp rate · [TBD] — E · [TBD] — shift length and duty profile · [TBD] — target platform mass and bay volume · [TBD] — allowable heat rejection · [TBD] — target platform — which humanoid, or a generic class**	03_Technical_Documents/EnergyWave_Humanoid_Power_Budget_Specification_DRAFT_2026-10-15.pdf	the founder or Chip Story; the PI when hired
B-6	**[TBD] — the thread A effect size the plan must resolve · [TBD] — the calorimetric resolution the program will fund · [TBD] — thread C lead — to hire, a Tranche A condition; no appointment is supplied by the founder's decisions of 15 Oct 2026 · [TBD] — principal investigator — to hire**	03_Technical_Documents/EnergyWave_Measurement_Platform_Error_Budget_DRAFT_2026-10-15.pdf	the thread C lead and PI when hired
B-12	**[TBD] — the exact site, laboratory footprint and first two hires — filled from the operating-requirements register when received**	01_Investor/02_Seed_Round/EnergyWave_Seed_Round_Technical_Docs_DRAFT_2026-10-15.pdf	filled from GPT/Codex's operating-requirements register; the founder in his own time
B-14	**[TBD] — founder and co-founder terms — counsel's lane · [TBD] — role · [TBD] — Design Engineer — credentials, terms, start · [TBD] — other roles and details · [TBD] — degree wording from a diploma or transcript · [TBD] — the three items — confirmed or omitted**	05_Team/EnergyWave_Team_and_Counsel_2026-10-15.pdf	the founder (TBD fields); Chip; counsel
B-7	**[TBD] — issuing entity — the LLC as applicant of record, or EnergyWave, Inc. once formed · [TBD] — a primary source for v2.0's "56 % of BOM; 28 body plus 50 hand actuators", or the figures are omitted · [TBD] — exact degree wording from a transcript · [TBD] — the three unverified items — confirmed or omitted · [TBD] — role**	02_DoW/EnergyWave_DoW_White_Paper_v2.1_DRAFT_2026-10-15.pdf	the founder (TBD fields); Chip; counsel

#	Item	Where it lands	Who
B-8	**[TBD] — whether the August 2025 paper was sent to any office, investor or advisor, and to whom — a written supersession note follows if it was (D11) · [TBD] — a primary source for the actuator figures, or they are omitted · [TBD] — registered or mailing address for EnergyWave letterhead**	02_DoW/EnergyWave_Safe_Release_Posture_DRAFT_2026-10-15.pdf	the founder (TBD fields); consents pending
B-15	**[TBD] — physical operating location**	02_DoW/EnergyWave_Applicant_and_Eligibility_Facts_2026-10-15.pdf	the founder, in his own time
B-9	**[TBD] — QVE Engine folder — inventoried if and when it reaches the Drive copy or the Mac is connected; not asked again · [TBD] — was this text ever published on energywave.ai or sent to anyone? · [TBD] — status of the Rossi relationship; any payment, deliverable or agreement; whether Rossi has any claim on EnergyWave IP · [TBD] — was this paper sent to any military office, investor or advisor? If yes, to whom and when, so a written supersession note can follow; and the Rossi relationship as in L-09** — Legacy sources — the QVE Engine folder is inventoried if and when it reaches the Drive copy of the Mac collection or the Mac is connected; the Rossi relationship and the 2024 GPT-content text (D11) are TBD and counsel's lane; SHA-256 of each §F file from the Mac when Antigravity hashes them (R-2).	SOURCE_LEDGER.md §D and §F	TBD; Antigravity for the hashes
B-10	**[TBD] — proposed terms, or "counsel to propose" · [TBD] — yes / the cap table at formation · [TBD] — names and titles · [TBD] · [TBD] — date; please confirm the filing would be in the inventors' names with later assignment, and what "some app and claim prep" covers. · [TBD] — attach the three documents** — Internal-ops drafts — Chip's draft asks him for his printed wording, written consent and proposed co-founder terms (or “counsel to propose”); the counsel question set carries the formation and ALG placeholders counsel fills; Alan's and Jack's drafts are on HOLD (H-1, H-2), their roles founder-confirmed. Every draft goes to Grok for its per-email review before any send; no send is authorized today.	90_Internal_Ops_NOT_FOR_CIRCULATION/	the founder (send authority only); Chip; counsel; Grok (review)
B-11	Mirrors and project — GPT/Lyra places and verifies each reviewed release in the three copies and fills the nine audience folders from DELIVERY_MAP.md after review; Ian or Antigravity uploads manifest.json, MANIFEST.md and the twenty-one rendered documents to the EnergyWave Ops Claude Project (an action, not a question).	2026-10-15_mirror-instructions.md; README release table; DELIVERY_MAP.md	GPT/Lyra; Ian or Antigravity

C · PENDING FROM COUNSEL OR A NAMED PERSON

Evidence, consent or an action owed by someone other than the founder. Drafted question sets are not sent; nothing here authorizes outreach.

#	Item	Where it lands	Who
P-1	**[Pending: counsel — 506(b) or 506(c)]**	01_Investor/01_Capital_Readiness/EnergyWave_SAFE_Term_Summary_DRAFT_2026-10-15.pdf	the founder with counsel; counsel for 506(b)/(c)

#	Item	Where it lands	Who
P-2	**[Pending: consents — D4] · [Pending: counsel — escrow structure] · [Pending: counsel — 506(b) or 506(c)] · [Pending: counsel] · [Pending: consents — D4] · [Pending: counsel — escrow structure] · [Pending: counsel — 506(b) or 506(c)]**	01_Investor/02_Seed_Round/EnergyWave_Seed_Deck_DRAFT_2026-10-15.pdf; 01_Investor/02_Seed_Round/EnergyWave_Seed_OnePager_DRAFT_2026-10-15.pdf; 01_Investor/02_Seed_Round/EnergyWave_Seed_Round_Structure_DRAFT_2026-10-15.pdf	the founder with counsel; counsel for escrow and 506(b)/(c)
P-14	**[Pending: counsel — consent to name K&L Gates, Novak and Majewski] · [Pending: consents — D4; Chip's written consent and counsel's]**	05_Team/EnergyWave_Team_and_Counsel_2026-10-15.pdf	the founder (TBD fields); Chip; counsel
P-7	**[Pending: Chip Story — written consent] · [Pending: counsel — consent to be named]**	02_DoW/EnergyWave_DoW_White_Paper_v2.1_DRAFT_2026-10-15.pdf	the founder (TBD fields); Chip; counsel
P-8	**[Pending: written consents before this paper circulates — D4; Jack's and Alan's roles founder-confirmed, no signed instrument; outreach not authorized]**	02_DoW/EnergyWave_Safe_Release_Posture_DRAFT_2026-10-15.pdf	the founder (TBD fields); consents pending
C-1	Securities: Rule 506(b) or 506(c) for the capital-readiness financing (instrument [TBD]; the Oct-13 materials proposed a $60,000 SAFE; none executed) and for the seed round — no deck reaches an investor who has not heard from the company first until answered; escrow structure for Tranches B and C; any CFIUS / FIRRMA consideration.	counsel question set §C; SAFE Term Summary; Seed deck slide 14; structure page	counsel
C-2	Formation: the four confirmations; the 1988 Delaware "EnergyWave Inc." #2149394; the filing itself (K&L Gates handling — founder, 15 Oct), then the certificate and file number.	counsel question set §A; Legal page §1	counsel
C-3	Patent: the current Patent Center docket for 63/763,998 and any later filing; the coversheet provisional in the inventors' names and what "some app and claim prep" covers; the ALG IP Assignment (Exhibit A, blank signature line), the July 2025 NDA and the Integrated Protective Rider reviewed against the EnergyWave work; assignment of energywave.ai and existing work product on formation; a freedom-to-operate note on the Haisch–Moddel / Jovion patents (ledger L-04) and thread B.	counsel question set §B; Legal page §§2–4	counsel
C-4	People and naming: consent to name K&L Gates, Novak and Majewski with their exact titles; advisor and team-member agreements; a 409A before any option grant; co-founder terms and the ZPEPG IP boundary.	counsel question set §E; Team and Counsel	counsel
C-5	Security posture: the AT-posture memo's §8 questions (trade-secret program; patent versus trade secret by compartment; Invention Secrecy Act exposure; export classification and deemed exports; CPI / AT obligations under federal funding; NDAs and departure procedures).	counsel question set §F; Compartmentalization & AT Posture v0.1 §8	counsel

D · HOLDS

An express instruction not to act.

#	Item	Where it lands	Who
H-1	Alan Crunkleton — advisor; role consent confirmed by the founder (S-46), no signed instrument claimed. HOLD: no outreach unless the founder later expressly authorizes it; the draft (bio-item confirmation) preserved unsent; the r5.3 Grok verdict is a dated record, not send authority; no address lookup.	90_Internal_Ops/2026-10-15_consent-request_alan-crunkleton_DRAFT.md; Team page	the founder (authorization only)
H-2	Jack Sarfatti — team member, not advisor; role consent confirmed by the founder (S-46), no signed instrument claimed. HOLD on the same terms; his draft preserved unsent.	90_Internal_Ops/2026-10-15_consent-request_jack-sarfatti_DRAFT.md; Team page	the founder (authorization only)

E · FOR THE REVIEWERS (GPT / LYRA, ANTIGRAVITY, GROK, GEMINI / ARGON)

GPT/Lyra audited r5 (S-39), delta-checked r5.2 (S-40), closed r5.3 (S-41) and delivered the founder decisions (S-44, S-46); each later release gets its own delta check against its pin.

#	Item	Where it lands	Who
R-1	Delta-check this release from the commit and pin in the handoff, per REVIEW_PROTOCOL.md — the founder-decision integration, the bracketed orange [TBD] and [Pending: …] markers, the Jack / Alan role reconciliation, the hub's thread B/C correction, the register rebuild; the slide deck is 16:9 with its own footer line on each slide.	REVIEW_PROTOCOL.md	Lyra; Antigravity
R-2	Hash the §F legacy files on the Mac and send the list.	SOURCE_LEDGER.md §F; mirror instructions	Antigravity
R-3	Re-review the Chip and counsel drafts if and when the founder authorizes a send — a prior verdict is not clearance of a revised draft; the Alan and Jack drafts stay on hold; verdicts recorded in the folder; none sent.	90_Internal_Ops README	Grok (Architect, Compliance)
R-4	Assemble the nine audience folders of the EnergyWave Final collection from DELIVERY_MAP.md after review — copies only, hash-checked against MANIFEST.md, nothing marked DRAFT or INTERNAL — then rebuild the collection's FILE_MANIFEST.json; one writer at a time.	DELIVERY_MAP.md; mirror instructions §5	GPT/Lyra

F · WHAT THE LEAD CLOSES WITHOUT FURTHER INPUT, ONCE THE INPUTS ARRIVE

Held by the lead; listed so the sequence is visible.

#	Item	Where it lands	Who
E-1	When a [TBD] field is filled, a consent arrives or counsel answers: fill the marker, re-render the affected pages, bump the version, rebuild the manifest, commit, push, and hand the new pin to the reviewers.	—	Claude

#	Item	Where it lands	Who
E-2	Fold GPT/Codex's operating-requirements register into the Technical Docs hub when received (B-12); draft the supersession note if the 2025 paper's distribution is confirmed (D11); draft the Series A files when the cap table and deck are located or rebuilt (B-3); place the QVE Engine inventory in the ledger when reachable (B-9).	—	Claude
E-3	Update DELIVERY_MAP.md as items move from DRAFT to READY, after GPT/Lyra's delta check of each release.	—	Claude

Sources: the marked pages in src/pages/; DECISIONS.md D1–D12; SOURCE_LEDGER.md §D, §F, S-36–S-47; 90_Internal_Ops_NOT_FOR_CIRCULATION/; DELIVERY_MAP.md; REVIEW_PROTOCOL.md; the founder decisions of 15 Oct 2026 (S-44, S-46, S-47). This register is generated from the markers; a marker that is not here is a finding.